

FEBULOUS - TERMS AND CONDITIONS

By accessing and using this Application, you accept and agree to be bound by the terms and provision of this agreement. In addition, while using this Application, you shall be subject to any posted guidelines or rules applicable to it, which may be posted and modified from time to time. All such guidelines or rules are hereby incorporated by reference into the Terms and Conditions.

This Application and its components are offered for informational purposes only; this Application shall not be responsible or liable for the accuracy, usefulness or availability of any information transmitted or made available via the Application, and shall not be responsible or liable for any error or omissions in that information. We do not endorse, support, represent or guarantee the completeness, truthfulness, accuracy, or reliability of any Content or communications posted via the Application or endorse any opinions expressed via the Application.

A. Sharing Your Content and Information

You are responsible for your use of Febulous, for any Content you post to it, and for any consequences thereof, including the use of your Content by other users and other third party Applications and websites. Most content you submit, post, or display through Febulous is public by default and will be able to be viewed by other users and through third party Applications and websites. You should only provide Content that you are comfortable sharing with others under these Terms.

All Content, whether publicly posted or privately transmitted, is the sole responsibility of the person who originated such Content. We may not monitor or control the Content posted via the Application and, we cannot take responsibility for such Content. Any use or reliance on any Content or materials posted via the Application or obtained by you through the Application is at your own risk.

You understand that by using the Application, you may be exposed to Content that might be offensive, harmful, inaccurate or otherwise inappropriate, or in some cases, postings that have been mislabeled or are otherwise deceptive. Under no circumstances will Febulous be liable in any way for any Content, including, but not limited to, any errors or omissions in any Content, or any loss or damage of any kind incurred as a result of the use of any Content posted, emailed, transmitted or otherwise made available via the Application or broadcast elsewhere.

You retain your rights to any Content you submit, post or display on or through the Application. By submitting, posting or displaying Content on or through the Application, you grant us a worldwide, nonexclusive, royalty free license (with the right to sublicense) to use, copy, reproduce, process, adapt, modify, publish, transmit, display and distribute such Content in any and all media or distribution methods (now known or later developed).

You understand that your Content may be syndicated, broadcast, distributed, or published by our partners and if you do not have the right to submit Content for such use, it may subject you to liability. Febulous will not be responsible or liable for any use of your Content by Febulous in accordance with these Terms. You represent and warrant that you have all the rights, power and authority necessary to grant the rights granted herein to any Content that you submit.

We always appreciate your feedback or other suggestions about Febulous, but you understand that we may use your feedback or suggestions without any obligation to compensate you for them (just as you have no obligation to offer them).

B. Safety

We do our best to keep Febulous safe, but we cannot guarantee it. We need your help to keep Febulous safe, which includes the following commitments by you:

- You will not post unauthorized commercial communications (such as spam) on Febulous.
- You will not collect users' content or information, or otherwise access Febulous, using automated means (such as harvesting bots, robots, spiders, or scrapers) without our prior permission.
- You will not upload viruses or other malicious code.
- You will not solicit login information or access an account belonging to someone else.
- You will not bully, intimidate, or harass any user.
- You will not post content that: is hate speech, threatening, or pornographic; incites violence; or contains nudity or graphic or gratuitous violence.
- You will not develop or operate a third-party application containing alcohol-related, dating or other mature content (including advertisements) without appropriate age-based restrictions.
- You will not use Febulous to do anything unlawful, misleading, malicious, or discriminatory.
- You will not do anything that could disable, overburden, or impair the proper working or appearance of Febulous, such as a denial of service attack or interference with page rendering or other Febulous functionality.
- You will not facilitate or encourage any violations of this Statement or our policies.

C. Registration and Account Safety

Febulous users provide their real names and information, and we need your help to keep it that way. Here are some commitments you make to us relating to registering and maintaining the security of your account:

- You will not provide any false personal information on Febulous, or create an account for anyone other than yourself without permission.

- You will not create more than one personal account.
- If we disable your account, you will not create another one without our permission.
- You will keep your contact information accurate and up-to-date.
- You will not share your password, let anyone else access your account, or do anything else that might jeopardize the security of your account.
- If you select a username or similar identifier for your account or Page, we reserve the right to remove or reclaim it if we believe it is appropriate (such as when a trademark owner complains about a username that does not closely relate to a user's actual name).

D. Intellectual Property Rights

Febulous respects the intellectual property rights of others and expects users of the Application to do the same. We will respond to notices of alleged copyright infringement that comply with applicable law and are properly provided to us. If you believe that your Content has been copied in a way that constitutes copyright infringement, please provide us with the following information:

- a) a physical or electronic signature of the copyright owner or a person authorized to act on their behalf
- b) identification of the copyrighted work claimed to have been infringed
- c) identification of the material that is claimed to be infringing or to be the subject of infringing activity and that is to be removed or access to which is to be disabled, and information reasonably sufficient to permit us to locate the material
- d) your contact information, including your address, telephone number, and an email address
- e) a statement by you that you have a good faith belief that use of the material in the manner complained of is not authorized by the copyright owner, its agent, or the law
- f) a statement that the information in the notification is accurate, and, under penalty of perjury, that you are authorized to act on behalf of the copyright owner.

We reserve the right to remove Content alleged to be infringing without prior notice, at our sole discretion, and without liability to you. In appropriate circumstances, Febulous will also terminate a user's account if the user is determined to be a repeat infringer.

E. Protecting Other People's Rights

We respect other people's rights, and expect you to do the same.

You will not post content or take any action on Febulous that infringes or violates someone else's rights or otherwise violates the law.

We can remove any content or information you post on Febulous if we believe that it violates this Statement or our policies.

If we remove your content for infringing someone else's copyright, and you believe we removed it by mistake, we will provide you with an opportunity to appeal.

If you repeatedly infringe other people's intellectual property rights, we will disable your account when appropriate.

You will not use our copyrights or Trademarks or any confusingly similar marks with our prior written permission.

If you collect information from users, you will: obtain their consent, make it clear you (and not Febulous) are the one collecting their information, and post a privacy policy explaining what information you collect and how you will use it.

You will not post anyone's identification documents or sensitive financial information on Febulous.

F. Private information posted on Febulous

Posting another person's private and confidential information is a violation of the Febulous Rules.

Some examples of private and confidential information include:

- credit card information
- social security or other national identity numbers
- addresses or locations that are considered and treated as private
- non-public, personal phone numbers
- non-public, personal email addresses
- images or videos that are considered and treated as private under applicable laws
- intimate photos or videos that were taken or distributed without the subject's consent

Keep in mind that although you may consider certain information to be private, not all postings of such information may be a violation of this policy. We may consider the context and nature of the information posted, local privacy laws, and other case-specific facts when determining if this policy has been violated. For example, if information was previously posted or displayed elsewhere on the Internet prior to being put on Febulous, it may not be a violation of this policy.

G. Special Provisions Applicable to Software

If you download or use our software, you agree that from time to time, the software may download and install upgrades, updates and additional features from us in order to improve, enhance, and further develop the software.

You will not modify, create derivative works of, decompile, or otherwise attempt to extract source code from us, unless you are expressly permitted to do so under an open source license, or we give you express written permission.

H. Termination

If you violate the letter or spirit of this Statement, or otherwise create risk or possible legal exposure for us, we can stop providing all or part of Febulous to you.

I. Disputes

WE TRY TO KEEP FEBULOUS UP, BUG-FREE, AND SAFE, BUT YOU USE IT AT YOUR OWN RISK. WE ARE PROVIDING FEBULOUS AS IS WITHOUT ANY EXPRESS OR IMPLIED WARRANTIES INCLUDING, BUT NOT LIMITED TO, IMPLIED WARRANTIES OF MERCHANTABILITY, FITNESS FOR A PARTICULAR PURPOSE, AND NON-INFRINGEMENT. WE DO NOT GUARANTEE THAT FEBULOUS WILL ALWAYS BE SAFE, SECURE OR ERROR-FREE OR THAT FEBULOUS WILL ALWAYS FUNCTION WITHOUT DISRUPTIONS, DELAYS OR IMPERFECTIONS. FEBULOUS IS NOT RESPONSIBLE FOR THE ACTIONS, CONTENT, INFORMATION, OR DATA OF THIRD PARTIES, AND YOU RELEASE US, OUR DIRECTORS, OFFICERS, EMPLOYEES, AND AGENTS FROM ANY CLAIMS AND DAMAGES, KNOWN AND UNKNOWN, ARISING OUT OF OR IN ANY WAY CONNECTED WITH ANY CLAIM YOU HAVE AGAINST ANY SUCH THIRD PARTIES

J. Entire Agreement

These Terms are the entire and exclusive agreement between Febulous and you regarding the Application (excluding any Application for which you have a separate agreement with Febulous that is explicitly in addition or in place of these Terms), and these Terms supersede and replace any prior agreements between Febulous and you regarding the Application.

We'll notify you before we make changes to these terms and give you the opportunity to review and comment on the revised terms before continuing to use our Application.

If we make changes to policies, guidelines or other terms referenced in or incorporated by this Statement, we may provide notice on the Application's Governance Page.

Your continued use of the Febulous Application, following notice of the changes to our terms, policies or guidelines, constitutes your acceptance of our amended terms, policies or guidelines.